Second, the one benefit from the extended delay to the hearing of the case was that the court could consider how the AFSPA operated in practice over that period. However, despite the case being heard close to four decades after the AFSPA was enacted and fifteen years after some of the early petitions were filed, the Supreme Court's analysis focused on the language of the law without considering its lived realities. No constitutional analysis of a law that has been in force for a prolonged period can be complete without considering how that law operates on the ground. In this instance, the extensive evidence of human rights violations presented by the petitioners was put aside, with the question of constitutionality framed in very narrow terms.[25]

'Business as usual' resumed in the Northeast following the Supreme Court's decision. Most NGOs and human rights organizations reported that the list of 'dos and don'ts' – now judicially sanctioned – had little traction and was rarely observed in practice. In fact, reports by commissions of inquiry in the years after the court's decision revealed that there was little awareness of the list even among the armed forces. One report noted that senior officers in the armed forces were 'surprised' by some of the guidelines that were read out to them, while junior officers 'did not appear to have any idea' that a list of 'dos and don'ts' existed in the first place.[26] The fact that the court chose to dispose of the petitions following its ruling – rather than leave them pending to monitor compliance with its decision – made it especially challenging to hold successive governments to account.[27]

About three years after the court's decision, Irom Sharmila, then a twenty-eight-year-old Manipuri woman working with a human rights organization, commenced a hunger strike seeking the repeal of the AFSPA. She would be force-fed through a tube by the state for over sixteen years until she called off the strike at the age of forty-four, with her primary objective still unfulfilled. Aside from Sharmila's strike, the AFSPA survived a series of committees and commissions of inquiry that recommended its repeal. The Justice Jeevan Reddy Committee was established in 2005 to review the operation of the AFSPA after the killing of Thangjam Manorama in the custody of Assam Rifles. (Manorama was a thirty-two-